

TENTATIVE RULING FOR CIVSB2316435
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Noirot v. State of California (Caltrans), et al

Motion: Motion for Leave to Intervene to File a Complaint in Intervention

Movant: Stephanie Fernandez (Fernandez) and Sarah Longo (Longo), collectively
(Nominal Defendants)

Respondent: The People of the State of California, acting by and through the Department of
Transportation (Defendant/Caltrans)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On July 17, 2023, Heather Noirot and Candis Garrett (Plaintiffs) filed a complaint against Caltrans and County of San Bernardino (dismissed 10/05/2023), City of Adelanto (dismissed 03/27/2024), and a fictitiously named entity, “Doe Construction Company.” Plaintiffs also named Sarah Longo and Stephanie Fernandez as nominal defendants.¹ On January 8, 2024, Plaintiffs filed a first amended complaint. On July 28, 2025, by stipulation, Plaintiffs filed a second amended complaint alleging: (1) dangerous condition of public property; (2) negligent infliction of emotional distress; (3) wrongful death; and (4) survival action.

On May 13, 2026, Nominal Defendant’s counsel filed a notice of appearance. The notice states Fernandez and Longo were previously unrepresented parties. Defendants now seek leave to intervene and have their designation changed from nominal defendants to plaintiffs. They also seek leave to file a complaint in intervention asserting claims for dangerous condition of public property and wrongful death. CAL TRANS opposes. First, Caltrans argues the proposed complaint in intervention is barred by the two-year statute of limitations. Second, Caltrans argues that any claims against it are independently barred by the Government Claims Act. On June 4, 2026, Defendants Sully-Miller Contracting and Pavement Recycling Systems filed joinders to Caltrans oppositions.

ANALYSIS

A wrongful death cause of action is a statutory claim held by the decedent’s heirs. (Code Civ. Proc., §§ 377.60-377.62.) The purpose of the claim is to compensate specified persons for

¹ Sarah Longo and Stephanie Fernandez are Decedent’s (Kevin Noirot) daughters and heirs.

their own losses resulting from the decedent's death, including the loss of companionship. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263; *Jackson v. Fitzgibbons* (2005) 127 Cal.App.4th 329, 335.)

Code of Civil Procedure section 377.60 identifies the persons who may assert a wrongful death claim, including the decedent's surviving spouse and children. (Code Civ. Proc., § 377.60, subd. (a).) California's wrongful death statute has been interpreted to authorize only a single action, in which all of the decedent's heirs must join or be joined. (*Romero v. Pacific Gas & Electric Co.* (2007) 156 Cal.App.4th 211, 216 (*Romero*); *Cross v. Pacific Gas & Electric Co.* (1964) 60 Cal.2d 690, 694 (*Cross*).)

Where an heir is named as a nominal defendant in a wrongful death action, that heir is considered a plaintiff in reality. (*Romero, supra*, 156 Cal.App.4th at p. 215; *see also Watkins v. Nutting* (1941) 17 Cal.2d 490, 498.) Thus, the naming of an heir as a nominal defendant is a procedural device to bring all heirs before the court in the single wrongful death action. This requirement is commonly referred to as the "one-action rule." (*Romero, supra*, 156 Cal.App.4th at p. 216.)

An heir may intervene as of right in a pending wrongful death action where the requirements of Code of Civil Procedure section 387, subdivision (d)(1)(B), are satisfied. (*King v. Pacific Gas & Electric Co.* (2022) 82 Cal.App.5th 440, 451 (*King*).) Mandatory intervention is appropriate where the proposed intervenor claims an interest relating to the property or transaction that is the subject of the action, disposition of the action may impair or impede the proposed intervenor's ability to protect that interest, and the existing parties do not adequately represent that interest. (Code Civ. Proc., § 387, subd. (d)(1)(B).)

Allowing an heir to participate in the pending wrongful death action is consistent with the one-action rule because defendants still defend one wrongful death action in one litigation and remain subject to one judgment binding all persons entitled to recover under the statute. (*King, supra*, 82 Cal.App.5th at p. 453.)

The motion is timely under the totality of the circumstances. Timeliness of a motion to intervene is determined from the totality of the circumstances, with focus on three primary factors: the stage of the proceeding at which intervention is sought, prejudice to the existing parties, and the reason for any delay. (*Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 574.)

In the case at hand, the notice of appearance for Fernandez and Longo was filed on May 13, 2026, and states they had previously been unrepresented parties. The motion was filed on May 26, 2026. The case also remains well before trial, which is set for March 15, 2027. On this record, allowing Fernandez and Longo to participate as Plaintiffs would not require a trial continuance, reopen closed discovery, or otherwise cause undue prejudice. Rather, intervention would align their procedural status with their existing status as heirs already named in the action as nominal defendants.

Fernandez and Longo have shown a sufficient basis to participate as plaintiffs in this action. As Decedent's surviving children, they are statutory heirs under Code of Civil Procedure section 377.60, and have a direct interest in the wrongful death recovery. Disposition of the case without their active participation may impair their ability to present evidence concerning their own claimed loss of Decedent's love, companionship, comfort, care, assistance, protection, affection, society, and moral support. Their interests also are not necessarily adequately represented by the existing Plaintiffs because each heir's damages may differ, and existing Plaintiffs' counsel does not represent Fernandez and Longo.

Statute of Limitations

Caltrans's reliance on *Andersen v. Barton Memorial Hospital* (1985) 166 Cal.App.3d 678 (*Andersen*) does not require denial of the motion. In *Andersen*, the decedent's husband and children timely filed a wrongful death action arising from alleged medical malpractice. More than three years after the decedent's death, another alleged heir, who had not been named in the action, sought leave to intervene and assert her own wrongful death claim. (*Id.* at p. 680.) The Court of Appeal held the proposed complaint in intervention was barred because, if brought as an original action, the heir's claim would be untimely. (*Id.* at p. 681.)

In the case at hand, Fernandez and Longo were named in the original complaint as nominal defendants and therefore were already before the Court in the timely filed wrongful death action. California law treats heirs named as nominal defendants in a wrongful death action as plaintiffs in reality. (*Romero, supra*, 156 Cal.App.4th at p. 215; *Watkins, supra*, 17 Cal.2d at p. 498.) Thus, unlike *Andersen*, this is not a case where a previously absent heir seeks to enter the litigation for the first time after the limitations period expired.

Furthermore, Fernandez and Longo do not need to rely on the relation back doctrine because they were already named in the timely filed wrongful death action. Although each heir's

wrongful death interest is personal, California law still requires all heirs to join or be joined in a single wrongful death action. (*Cross, supra*, 60 Cal.2d at p. 694.) Their requested intervention does not introduce a new incident or a separate wrongful death action. Rather, it seeks to allow already named heirs to participate actively in the pending wrongful death action. The relation-back doctrine does not provide a basis to deny intervention.

Government Claims

Government Code section 945.4 provides that no suit for money or damages may be brought against a public entity until a written claim has been presented to the public entity and acted upon or deemed rejected. (Gov. Code, § 945.4.) For claims relating to death or injury to person, the claim must be presented no later than six months after accrual. (Gov. Code, § 911.2, subd. (a).) Caltrans contends Fernandez and Longo did not submit their own government claims within six months of accrual and cannot rely on government claims submitted by Plaintiffs Heather Noirot or Candis Garrett.

In *Nguyen v. Los Angeles County Harbor/UCLA Medical Center* (1992) 8 Cal.App.4th 729 (*Nguyen*), the minor patient timely presented a government claim for her own injuries, but her parents did not present their own claims before suing for their separate emotional distress injuries. (*Id.* at pp. 731-732.) The Court of Appeal held the parents could not rely on the minor's claim because their injuries were separate and distinct from the injury identified in the minor's claim. (*Id.* at pp. 733-734.) Thus, *Nguyen* supports Caltrans's position that Fernandez and Longo cannot rely on government claims submitted by other heirs to assert their own claims for damages against Caltrans.

The proposed complaint in intervention alleges Fernandez and Longo satisfied the Government Claims Act "through and benefiting from" the claims submitted by Heather Noirot and Candis Garrett. (Christensen Decl., Exh. A, ¶ 14.) That allegation is insufficient under *Nguyen*. Fernandez and Longo acknowledge the merit of Caltrans's Government Claims Act argument by requesting the Court accept their stipulation that they assert no claims against Caltrans and seek no recovery from Caltrans. Fernandez and Longo concede the Government Claims Act bars them from asserting wrongful death claims against Caltrans but does not eliminate their status as heirs already named in the wrongful death action to prevent them from participating as Plaintiffs against nonpublic entity Defendants.

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RULING

1. Fernandez and Longo's motion for leave to intervene as plaintiffs in this wrongful death action is GRANTED, subject to their stipulated dismissal of Caltrans from their Complaint in Intervention upon filing. Fernandez and Longo shall have 10 days to get their Complaint on file along with voluntary dismissal of Caltrans from the Complaint in Intervention.
2. Movant to give Notice.